

HOUSE No. 3469

The Commonwealth of Massachusetts

PRESENTED BY:

Mark J. Cusack

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to solar permitting.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Mark J. Cusack</i>	<i>5th Norfolk</i>	<i>1/16/2025</i>

HOUSE No. 3469

By Representative Cusack of Braintree, a petition (accompanied by bill, House, No. 3469) of Mark J. Cusack relative to solar energy storage permit applications and inspections. Telecommunications, Utilities and Energy.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3683 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to solar permitting.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

- 1 Chapter 40 of the General Laws, as appearing in the 2022 Official Edition,
- 2 is hereby amended by inserting at the end thereof the following sections:-
- 3 Section 70. Approval for Solar and Energy Storage Permit Applications
- 4 (a) The Permit Granting Authority shall allow for electronic submission of the permit
- 5 application and associated documentation for the installation of a solar PV system, solar thermal
- 6 system, building-integrated PV system, energy storage device, or a solar system combined with
- 7 an energy storage device. All required permitting documentation and forms shall be published on
- 8 the Permit Granting Authority’s publicly accessible internet website. The Permit Granting
- 9 Authority shall authorize an electronic signature for the permit application and other

documentation in lieu of a wet signature by an applicant. Electronic submission, including online payment of associated permitting fees, shall be offered through either an online portal available on the website of the Permit Granting Authority or via electronic mail to a dedicated account that shall be capable of receiving permit applications.

(b) Upon submission of required permit application documents, the application shall be deemed complete if, after five business days have elapsed, the Permit Granting Authority has not issued a written correction notice detailing all deficiencies in the application and identifying additional information explicitly necessary for the Permit Granting Authority to complete a review.

(c) An application shall be deemed approved and the applicant may begin installation if ten business days after the application was deemed complete has elapsed and the following are true:

(i) the Permit Granting Authority has not administratively approved the application.

(ii) the Permit Granting Authority has not denied the permit.

(d) A Permit Granting Authority may use an automated permitting platform that verifies code compliance and issues permits in real time to satisfy the requirements of subdivisions (a), (b), and (c). An applicant may begin installation after the issuance of a permit from such an automated permitting platform.

Section 71. Solar and Energy Storage Inspections

(a) Applicant shall notify the Permit Granting Authority upon completion of system installation. Permit Granting Authorities shall require no more than one inspection for a solar PV

31 system, building-integrated PV system, solar thermal system, energy storage device, or the solar
32 system combined with an energy storage device in order for the system or device to receive a
33 certificate of completion. The Permit Granting Authority shall issue a certificate of completion
34 no later than 10 business days following the receipt of notice from the applicant that the system,
35 device, or combined system and device, is installed.

36 (b) An electric distribution company shall not require additional inspections by the
37 electric distribution company or any other entity as a precondition to granting the customer
38 permission to operate.